

# **NPHIES Portal Terms and Conditions - Business-Risk Summary**

## **NPHIES Portal Terms & Conditions - Business-Risk Summary for Counsel**

Status: research complete (not a legal read yet). Source: HUMAN\_CONFIRMATION\_NEEDED.md G8 - full text pulled directly from every accordion section of [nphies.sa/terms-and-conditions](https://nphies.sa/terms-and-conditions) (Arabic, live page, 2026-07-19), not a summarized fetch. This is a real, binding agreement, not boilerplate - access to the portal constitutes unconditional acceptance, effective from first use, changeable anytime at NPHIES's sole discretion with no obligation to announce updates.

### **The two clauses flagged specifically for counsel's read**

1. Confidentiality-disclaimer wording. The ToU states that user communications sent through the portal carry no ownership right or confidentiality guarantee on NPHIES's part. This *\*appears\** to be a generic disclaimer about portal-support channels (contact forms, chat) - not the FHIR claims-transaction data itself, which would be governed by separate technical/security specs, not this ToU page. [COUNSEL TO CONFIRM] the wording doesn't extend further than that in practice - don't let engineering assume this based on the plain-language read above.

2. IP clause's bearing on IG bundling. All portal content (software and information) is protected under Saudi copyright/trademark/IP law and owned by NPHIES - no sale, license, rent, modification, copy, reproduction, redistribution, or derivative works for public/commercial purposes without prior written NPHIES approval. This independently confirms the same restriction already found in the NPHIES Implementation Guide's own copyright notice (HUMAN\_CONFIRMATION\_NEEDED.md F3) - two independent sources now say the same thing. What to do: do not bundle/redistribute the IG into the product or CI without written NPHIES approval - already actioned, just flagging the ToU as a second, independent basis for the same conclusion.

### **Other clauses on file (lower priority, still worth a lawyer's eyes once)**

- Jurisdiction: exclusive submission to Saudi courts for all portal-use disputes.
- Liability limitation: portal explicitly framed as only "facilitating manual procedures," not a replacement for official channels; disclaims responsibility for connection/equipment/software failures or reliance on portal content.
- Termination: NPHIES may terminate/restrict/suspend access at its sole discretion, without notice, for any reason including a ToU violation - treat this as a live operational dependency, not just a legal formality (Email 2 to [onboarding@chi.gov.sa](mailto:onboarding@chi.gov.sa) separately asks whether there's a published basis for suspension).
- Indemnity: users waive compensation claims against NPHIES/its staff for anything arising from the user's own breach of the ToU or KSA regulations.
- Usage restrictions: standard acceptable-use terms (no malware, no unlawful content, no excessive load on infrastructure, KSA anti-cybercrime law compliance).

### **What to do**

Get this in front of counsel as part of the same engagement drafting the DPA/SCC (already folded into the original Email 6 scope) - it's a business-risk document worth a lawyer's read, not something engineering can resolve. No code change implied by this file.